

STATE OF NEW YORK

5516--A

2025-2026 Regular Sessions

IN SENATE

February 24, 2025

Introduced by Sens. HINCHEY, ADDABBO, MAY, WEBB -- read twice and ordered printed, and when printed to be committed to the Committee on Transportation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the railroad law, in relation to requiring railroad corporations to conduct a comprehensive safety inspection when a freight train is parked in a train yard prior to traveling on tracks within the state

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The railroad law is amended by adding a new section 72-a to
2 read as follows:

3 § 72-a. Freight train inspections. 1. Every railroad corporation which
4 operates any freight train within the state shall conduct a comprehen-
5 sive safety inspection when a freight train is parked in a train yard
6 prior to traveling on tracks within the state. Such safety inspection
7 shall include, but not be limited to, a review of tracks, wheels, safety
8 equipment, including brakes and bearings, and train cars. The depart-
9 ment of transportation shall compare such safety inspection results with
10 the inspection the railroad corporation conducted prior to originating
11 the entire planned trip.

12 2. Every railroad corporation which operates any freight train within
13 the state shall have a minimum of two qualified car inspectors on either
14 side of a freight train as it leaves a rail yard to observe for safety
15 issues.

16 3. The commissioner shall promulgate all rules and regulations neces-
17 sary for the implementation of this section.

18 § 2. This act shall take effect on the thirtieth day after it shall
19 have become a law; provided, further, that this act shall be deemed
20 repealed if any federal agency determines in writing that this act would
21 render New York state ineligible for the receipt of federal funds or any

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 court of competent jurisdiction finally determines that this act would
2 render New York state out of compliance with federal law or regulation;
3 and provided, further, that the commissioner of transportation shall
4 notify the legislative bill drafting commission upon the occurrence of
5 such determination in order that the commission may maintain an accurate
6 and timely effective data base of the official text of the laws of the
7 state of New York in furtherance of effectuating the provisions of
8 section 44 of the legislative law and section 70-b of the public offi-
9 cers law. Effective immediately, the addition, amendment and/or repeal
10 of any rule or regulation necessary for the implementation of this act
11 on its effective date are authorized to be made and completed on or
12 before such effective date.